

Calendar Line 1

Case Name: *John Nellis v. Santa Clara Valley Transportation Authority, et al.*

Case No.: 22CV406020

Defendant John Vaughan (“Mr. Vaughan”) seeks a protective order limiting the scope of discovery regarding Plaintiff’s deposition notice and second request for production served on Mr. Vaughan. Defendants have advised that Mr. Vaughn passed away on April 24, 2026, while this motion was pending before the Court. Although Plaintiff has been advised of Mr. Vaughn’s passing, Plaintiff has not substituted any other party into the action, has not withdrawn the discovery that is the subject of the motion, has not withdrawn the motion, and has not opposed the motion.

Mr. Vaughan’s motion for a protective order is GRANTED, hereby quashing the deposition notice and request for production of documents, noticed for May 1, 2026, and the second set of requests for production of documents, with responses due on May 5, 2026.

Subject to this protective order, the discovery stay granted by the Court’s order filed April 30, 2026 is otherwise hereby LIFTED.

Moving party to prepare the final order, accompanied by the necessary Forms EFS-020, within 10 days of the date of the hearing.

- oo0oo -

Calendar Line 4

Case Name: *John Vincent Santos v. Ford Motor Company, et al.*

Case No.: 24CV453671

Before the Court is Defendant Ford Motor Company's ("Defendant" or "Ford") motion for summary adjudication in its favor and against Plaintiff John Vincent Santos ("Plaintiff"). Pursuant to California Rule of Court 3.1308, the Court issues its tentative ruling as follows:

I. BACKGROUND & FORD'S UNDISPUTED MATERIAL FACTS

This is an action for violations of the Song-Beverly Warranty Act ("Song-Beverly" or the "Act") (Civ. Code, §§ 1790 et seq.). Plaintiff alleges that he purchased a vehicle manufactured and/or distributed by Ford (the "Vehicle") and that various defects manifested during the applicable warranty period, including but not limited to engine defects. (Complaint, ¶¶ 12, 13.) Based on these alleged violations, he initiated the instant action with the filing of the Complaint on December 10, 2024, asserting claims for: (1) violation of Civil Code § 1793.2, subd. (d); (2) violation of Civil Code § 1793.2, subd. (b); (3) violation of Civil Code § 1793.2, subd. (a)(3); (4) breach of implied warranty of merchantability; (5) negligent repair; (6) fraudulent inducement-concealment.¹

According to the materials submitted by Ford in support of its motion, on October 19, 2022, Plaintiff purchased the Vehicle, a new 2022 Ford Maverick. (Defendant's Separate Statement of Undisputed Material Facts in Support of Motion for Summary Adjudication ("UMF"), No. 1.) In his claim for fraud, Plaintiff alleges that the Vehicle's engine suffered from "one or more defects that can result in loss of power, stalling, engine running rough, engine misfires, failure or replacement of the engine" (the "Engine Defect") and that prior to the sale of the Vehicle, Ford "knew, or should have known, about the Engine Defect through its exclusive knowledge of non-public, internal data about the Engine Defect" and actively concealed its existence from Plaintiff and/or failed to disclose it to him. (UMF Nos. 3-5.)

On February 9, 2026, Ford propounded written discovery on Plaintiff which included special interrogatories and requests for production of documents and, in part, sought all facts, persons with information, and documents to support Plaintiff's fraud claim. (UMF No. 6.) Plaintiff served his written responses on March 13, 2026 and his 15-page document production on March 16, 2026. (UMF Nos. 7, 8.)

Defendant filed the instant motion for summary adjudication of the sixth cause of action on March 26, 2026. No opposition has been filed by Plaintiff.

II. ANALYSIS

A. Burden of Proof

¹ All claims are asserted against Ford, excluding the fifth for negligent repair, which was asserted against Will Tiesiera Ford Mercury. Plaintiff dismissed Will Tiesiera Ford Mercury from this action on May 12, 2025.